

CHAPTER 3

AN EARLY SYSTEMATIC ACCOUNT

ABOUT the time when Plutarch, in his life of Lycurgus, was presenting the world with an ideal picture of the state of Sparta, the Jewish soldier, scholar, politician and historian commonly known as Flavius Josephus published, in a treatise *Against Apion*, an 'apology' for Judaism. It is thought to have been 'issued in old age, when the author was upwards of 63, early in the second century under the Emperor Trajan' (H. St. J. Thackeray, Introduction to the Loeb edition, I, xii). For us it is of especial interest because it bridges the space between the foundations of Judaism as they appear in the Hebrew Scriptures and the shape which Judaism began to assume in the Rabbinic writings of the early Christian centuries.

I should say at once that most students are agreed that Josephus was no religious personality. He was neither reformer nor saint. From the point of view of personal character he has been dismissed as an 'adventurer' (M.P. Charlesworth); from that of a source of information about contemporary religion, as 'somewhat disappointing' (G. F. Moore). Other commentators have branded him with even worse names of which 'quisling' and 'sycophant' are of the milder sort. Yet for our present purpose this poor reputation of his is not perhaps a disadvantage. His very unoriginality is, for us, helpful. If his presentation is banal, it is all the more likely to be near to the religion of the ordinary man. It may be 'brushed up' for the purpose of

exhibition. But there is no harm in that. The book is a defence against attack. Plato's *Apology of Socrates* is also a defence against attack but it is one of the great books of the world. Such 'apologies' are apt to be deeply felt, and are for that reason particularly valuable. And so we shall listen to a human being, possibly a poor specimen, certainly uninspired, writing in his declining years about the faith to which he was himself attached, in contrast with the mixture of Hellenism and miscellaneous paganism which he breathed around him.

Josephus's starting point is 'our lawgiver, Moses, and his code'; and he sets out to show that the 'constitution' of Moses (the Greek words used are drawn from the regular terminology of the institutions of government) produces a desirable type of human being: 'We possess [he says] a code excellently designed to promote piety, friendly relations with each other, and humanity towards the world at large, besides justice, hardihood, and contempt of death.' (§ 146; all quotations are from the Loeb version by H. St. J. Thackeray.)

This is a very interesting first point. We may forget its apologetic side. Of course every religion claims for itself every virtue. The striking thing is that Josephus thinks of Judaism at once in terms of an organized community, and contrasts its type of community with other types. Moses becomes, as it were, another Solon or Lycurgus. He is a legislator and lays down a constitution.

Thinking along these lines Josephus argues, first, that Moses was more than another Solon. He was a *successful* Solon. The state he founded ante-dated by many centuries that of any Greek legislator, and it lasted long after they had disappeared; and the peculiar qualities it engendered in its citizens were both admirable in themselves and, even from the point of view of the Greeks, unique. For, says Josephus, the Jews through their moral training surpassed the Greeks in the essential military virtues of constancy and courage. This basic loyalty, he claims, pervades the whole of Jewish life, not only on the field of battle;

and he contrasts it vividly with the unsatisfactory results of the Spartan system, even though this had been facilitated by slave labour and directed specifically to the development of military efficiency. His point is one we have heard much of on a wider stage in our own day. The moral courage engendered by willing adherence to a steadfast way of life wears better even in war than the mechanical obedience of the military camp.

Thus Josephus, as the primary characteristic of the Judaism he knew, singles out the idea of law. Law; regulation; character—these are the pivots around which his account revolves. And character rather than personality. Josephus is thinking of the 'fixed and reliable' elements in man (as they have been called), rather than the 'mobile' ones, for example, the versatility which we have been taught to admire in the Athenians. The Jew never appreciated the virtue of 'running after every new thing'. He preferred 'remembering the days of old'.

If this had been the whole story, one wonders whether there would have been any ground for the courage Josephus speaks of so proudly or any object for the loyalty he makes so much of. There would have been only a sterile discipline of the sort which he notes as being the boast, and the failure, of Sparta. But Judaism had something more; and it is this 'something more' which constitutes the glow in Josephus's apologia and which is in itself a glory.

True, Moses founded a state; but the state he founded differed from others not only in its quality and its durability. His state was not one of the conventional types. It was not a monarchy or an oligarchy or a democracy but—and here Josephus lets fall a word, evidently of his own invention, which has had a dreary history and which has become charged for us with an objectionable meaning. And yet the idea is entirely Biblical; and if Josephus had been satisfied with ordinary Biblical terminology, no more would have been thought about it. But he wanted a word of the same type as the received expressions 'monarchy' and 'oligarchy' and 'democracy' (the rule of one man; the rule of the few; the rule of the people); and so he

coined a new word and said ('forcing language', as he remarks) that the state which Moses founded was a 'theocracy': it was centred on God:

'To Him he [Moses] persuaded all to look as the author of all blessings, both those which are common to all mankind, and those which they had won for themselves by prayer in the crises of their history. He convinced them that no single action, no secret thought, could be hid from Him. He represented Him as One, uncreated and immutable to all eternity; in beauty surpassing all mortal thought, made known to us by His power, although the nature of His real being passes knowledge.'

In a similar strain Josephus concludes the whole work:

'I would therefore boldly maintain that we have introduced to the rest of the world a very large number of very beautiful ideas. What greater beauty than inviolable piety? What higher justice than obedience to the laws? What more beneficial than to be in harmony with one another, to be a prey neither to disunion in adversity, nor to arrogance or faction in prosperity; in war to despise death, in peace to devote oneself to crafts or agriculture; and to be convinced that everything in the whole universe is under the eye and direction of God?'

Students of theology will note Josephus's statement of the nature and attributes of God; students of morals his account of the virtues of man. For us at the moment the important point is his conception of Judaism as the 'statutes and ordinances' (if I may translate him back into Biblical language) of the 'kingdom of God'.

A grandiose conception, this, but one notoriously full of ambiguities. Josephus himself thought in terms of the national polity he had known; and he saw the temple, at the destruction of which he had been present, as the centre of the divine kingdom, with the priesthood as its interpreter and instrument. Yet even so, when he comes to describe the 'precepts and prohibitions', that is, the legislation of the Kingdom, the confines fall away:

'They—the precepts and prohibitions—are simple and fami-

liar. At their head stands one of which God is the theme. The universe is in God's hands; perfect and blessed, self-sufficing and sufficing for all. He is the beginning, the middle and end of all things. By His works and bounties He is plainly seen, indeed more manifest than aught else; but His form and magnitude surpass our powers of description. No materials, however costly, are fit to make an image of Him; no art has skill to conceive and represent it. The like of Him we have never seen, we do not imagine, and it is impious to conjecture. We behold His works: the light, the heaven, the earth, the waters, the reproductive creatures, the sprouting crops. These God created, not with hands, not with toil, not with assistants of whom He had no need; He willed it so, and forthwith they were made in all their beauty. Him must we worship by the practice of virtue; for that is the most saintly manner of worshipping God.

'We have but one temple for the one God (for like ever loveth like), common to all as God is common to all.'

And as God is common to all, so (Josephus proceeds) is God's law; and this not only in its ceremonial aspect but in its moral demands on the human individual and in the social feeling which it inculcates. In a famous passage he says that the Greek philosophers of old were disciples of Moses,

'holding similar views about God, and advocating the simple life and friendly communion between man and man;' while 'the masses have long since shown a keen desire to adopt our religious observances; and there is not one city, Greek or barbarian, nor a single nation, to which our custom of abstaining from work on the seventh day has not spread. . . . Moreover, they attempt to imitate our unanimity, our liberal charities, our devoted labour in the crafts, our endurance under persecution on behalf of our laws.

'The greatest miracle of all is that our Law holds out no seductive bait of sensual pleasure, but has exercised this influence through its own inherent merits; and, as God permeates the universe, so the Law has found its way among all mankind.'

This passage is worthy of attention because, although as history it might be a vain boast, in conception it is sound. It is obvious that the very idea of monotheism is incompatible with anything less. Consciously or unconsciously Josephus is given rein to the inner logic of the idea from which he starts. The idea expands as he holds it. If he had identified the ideal of the Kingdom with the political state he knew, he would have fallen into the disastrous confusion of morals and politics against which prophetic Judaism is one continuous protest. But he does not do that. He holds tight to the ideal of the Kingdom and affirms that it is to this ideal that communities (his own included) should approximate. His God remains transcendent and yet cares for his creatures and is interested in their practical guidance; and this guidance God put into a constitution the adoption of which raises politics to the level of religion. Moses's function was not to create the constitution—the constitution is not his creation at all—but to persuade his people to accept it; and Josephus shows penetration in remarking and insisting on, as one of the great innovations of Judaism, the public teaching of religion and morals. Religion is not a sacred mystery or the heritage of the few or a passing enthusiasm or an ecstatic interlude. It is the solid backbone of living, open to all.

And so, however disappointing Josephus may be as an expositor of personal religion and however pedestrianly he assumes the view that acts of worship are the mortar of a political community, he is soon forced to recognize that, from the very data of the situation he is examining, he cannot halt there. For Judaism is a monotheism; and for that plain reason its community and its citizenship, like the God it serves, know no confines or limitation.

As one turns over Josephus's book one is struck by several points: the meagreness of its speculative theology; its homely list of human virtues; its reasoned account of Pentateuchal legislation and its firm grasp of its social reference and moral background; its concentration on the idea of God, not God in

the metaphysical abstract but in the moral concrete, the God who 'looks to the heart'. But the most profound and lasting impression comes from the sense he gives of the overriding importance of law. It is through law, not only individual laws, but the very conception of Law, that Judaism is for Josephus what it is. Law is 'the standard and rule', and we 'live under it as under a father and master'. It is ever-present in consciousness, 'engraved in the very soul'. It is the constant subject both of instruction and practice. Indeed it is this unity of the knowledge and practice of law that constitutes for Josephus the distinguishing mark of Judaism.

The conception is of course Biblical, indeed Pentateuchal: 'Behold, I have taught you statutes and judgements, even as the Lord my God commanded me. . . . Keep therefore and do them; for this is your wisdom and your understanding in the sight of the peoples which shall hear all these statutes and say, surely this great nation is a wise and understanding people' (Deut. iv, 5-6). It will be worth while therefore to see how the Hebrew Bible stands with regard to some of Josephus's other points too.

So far as Josephus's 'theocracy' is concerned, if we re-translate it into Hebrew and so restore to it the familiar name of the 'Kingdom of God', there is no need to go beyond the ordinary dictionaries and encyclopaedias in order to see how central a conception it is. The important thing to note is that it is not originally or primarily apocalyptic: it is not a description of the 'last things'. Nor is the Kingdom to be thought of primarily as the consequence of a sudden divine act, whether resulting from a general human repentance or from God's despair at the lack of it. At least theoretically, as the prophet Samuel reminded the king-making assembly at Gilgal (1 Sam. xii, 12), 'the Lord your God' is 'your king' here and now. Even in the realm of Apocalyptic (below, pp. 61 f.) it may well be a natural and terrestrial, albeit divinely organized, community in the hands of the 'saints of the Most High' (Dan. vii, 18), not the supernatural dominion of divine sovereignty. As Hobbes remarks (*Leviathan*, cap. xxxv):

'The Kingdom of God in the writings of divines . . . is taken most commonly for eternal felicity, after this life, in the highest heaven. . . . To the contrary, I find the Kingdom of God to signify in most places of Scripture a Kingdom properly so named, constituted by the votes of the people of Israel. . . . By the Kingdom of God is properly meant a commonwealth, instituted (by the consent of those which were to be subject thereto) for their civil government and the regulating of their behaviour, not only towards God their King, but also towards one another in point of justice, and towards other nations both in peace and war. . . . The Kingdom therefore of God is a real, not a metaphorical, kingdom. . . .'

We have remarked on the meagreness of Josephus's theology. This too would seem to be a characteristic of the Hebrew Scriptures, and indeed of the tradition of Judaism in general. A Talmudic anecdote relates that a certain person leading the congregation in prayer before Rabbi Haninah and saying: 'O God, the great, the powerful, the awesome, the mighty, the valiant, the terrible, the strong, the warlike, the true, the honoured', was stopped short by the Rabbi and asked: 'Have you finished all the praises of your Master?' On the whole, there is in the Hebrew Bible (I except the 'visions of God' in Ezekiel and Daniel) very little 'gnosis', that is, a superior and secret knowledge about spiritual matters. That God is the creator, and that he creates not with hands but by his word and will; that he is just; that he is good; that he forgives the sinner; that he is great and glorious and all-powerful; that he cares for his creatures and loves the humble—all this we hear time and again, but in no systematic form or organized creed. When Jeremiah (x, 11) wishes to sum up his message in one simple sentence (the fact that it is in Aramaic suggests that it was given as a watchword for the prisoners who were being transported to an alien land), it is: 'Thus shall ye say unto them, The gods that have not made the heavens and the earth, these shall perish from the earth and from under the heavens.' When God

is represented as declaring his own nature, it is simply (Isa. xlv, 6) as the 'first and the last'; and the people of God are told by Moses in his recapitulation of the Law little more than that he is one and that they owe him love and reverence and a cleaving to his ways. The fact is that the Hebrew Scriptures, although the source of much theology, are not in themselves theological. Even when the knowledge of God is insisted upon and even, in so many words, defined, it is in terms not of the intimate character of God but of the moral activities of man: 'Thy father judged the cause of the poor and needy. . . . Was not this to know me? saith the Lord' (Jer. xxii, 16). The '*knowledge of God*' required of man (Jer. iv, 22) is to '*do good*'.

From the reverent humility of the approach to God we may turn to the virtues of man.

Josephus, as we saw, stresses courage and loyalty, attention to work, sympathy with neighbours, friendliness, co-operation. These are the concrete virtues of practical living and are strongly reminiscent of the Biblical virtues of speaking the truth, helping the helpless, promoting peace:

'These are the things that ye shall do; Speak ye every man the truth with his neighbour; execute the judgement of truth and peace in your gates: and let none of you imagine evil in your hearts against his neighbour; and love no false oath: for all these are things that I hate, saith the Lord.' (Zech. viii, 16-17)

'Wash you, make you clean; put away the evil of your doings from before mine eyes; cease to do evil: learn to do well; seek judgement, relieve the oppressed, judge the fatherless, plead for the widow.' (Isa. i, 16-17)

I quote the prophets. The same is to be found in the Law and the Writings. One notes it particularly in the Psalms. The 'hill of the Lord' is 'ascended' not by ritual acts or by special knowledge, but by 'clean hands and a pure heart'.

We are thus brought to the more intimate question of the nature of religion; and, first, a word on religion itself.

According to one of the traditional etymologies the Latin word 'religio' means 'binding', and it is generally said that the Romans, a practical people, 'bound' their gods. They made bargains with them and expected the bargains to be kept—*do ut des*: they gave in order that the gods should give in return. And so indeed do most primitive peoples. Such 'religio' is hardly distinguishable from magic. It is the attempt to harness the world of spirits for the use of the world of man.

One may see this in the attitude to prayer. Prayer for them (as indeed for most of us) is the compelling of the gods. It is the imposition *on* their will of our will; or, if we are not strong enough ourselves, the imposition on their will of the will of the strong man—the 'medicine man'—we employ or rely on.

But Biblical prayer, at least at its best and truest, is not that. It is not a compelling but a submission. It is an appeal to God's will, the 'doing' of which is to be a 'delight', not the insistence on our own.

For the 'binding' which is religion is not necessarily a binding of the gods. It might be a binding of ourselves to God. And it might also be a binding—a self-binding—of God to us. Biblical religion is of this second and third type. We are called upon to love God, to cleave to God, to walk in his ways—that is, to bind ourselves to God; and we are told that God loves us and seeks us out ('spreading out his hands all the day'), however blind and deaf we may ourselves be. 'Binding' of the magical kind is forbidden: 'Ye shall not test the Lord thy God.' Even miracles, we are told (Deut. xiii), may lead us astray! In religious matters, as we shall see Maimonides pointing out most forcefully (below, pp. 160 f.), wonder-working, and wonder-workers, are irrelevant.

In Biblical Hebrew there is no equivalent for the Latin 'religio' or its derivatives in modern languages. The closest would seem to be *Daath Elohim*, the 'knowledge of God', as in the verses of Hosea (iv, 1, 14) which declare that 'there is no knowledge of God in the land' and that the 'people that doth not understand' are doomed. But the reference is not to the

‘personal’ (over-personal?) religion of our day but to the practice of moral action:

‘Hear the word of the Lord, ye children of Israel: for the Lord hath a controversy with the inhabitants of the land, because there is no truth, nor mercy, nor knowledge of God in the land. There is naught but swearing and breaking faith, and killing and stealing, and committing adultery: they break out, and blood touches blood.’

What in our day is called religion is best represented in the Hebrew Bible by the desire for, or the attainment of, *kirbath elohim*, the ‘nearness of God’; and it is curious to observe that in the two instances in which the phrase is found, and from which it may be assumed to have been a phrase in popular speech (as it was much later in some of the mystical literature), it is not translated in the English versions literally. ‘The nearness of God is my good’, says the Psalmist (lxxiii, 28); the English: ‘It is good for me to draw near unto God.’ ‘They pretend to desire the nearness of God,’ says Isaiah (lviii, 2); the English: ‘They delight to draw near to God.’ Yet even with the ‘nearness of God’ the moral side overpasses the metaphysical. ‘What great nation is there’, asks the Deuteronomist, ‘that hath God *so nigh unto them* as the Lord our God is; and what great nation is there that hath statutes and judgements *so righteous as all this law?*’ It is the presence and possession of ‘this law’ which is the sign and evidence of the ‘nearness of God’.

In Greek too there is no equivalent for the Latin ‘religio’. The word generally translated religion is *eusebeia*, i.e. roughly, piety; but a piety which, like its original Latin *pietas*, is the feeling of reverence and respect felt by a son to a father. The full Greek term for religion, so far as it may be said to exist, is not *eusebeia* by itself but *eusebeia pros* (or, *peri*) *tous theous*, i.e. piety towards the gods. Now Josephus, like any other Greek writer, recognizes that this ‘piety towards the gods’ represents the right relation between men and God; but he says of it: ‘Moses did not make it a department of virtue; but the various virtues—I mean justice, temperance, fortitude, and mutual

harmony in all things between the members of the community [incidentally, a very Platonic (and Stoic) list]—departments of religion.'

Thus for Josephus morality is not separate from religion. Religion was no abstract system of belief, or a series of non-moral acts of worship of no intrinsic significance. For him, as for the Hebrew Bible, as indeed for the whole tradition of Judaism, moral action and religion, although not identical, are indissociable.

It is this central fact which is crystallized in the phrase the 'Kingdom of God'. The goal is an ordered society, a human community. As Hobbes says rightly: it is a real, not a metaphorical kingdom. But it is a kingdom which is *of God*, not the all-devouring state founded on fear and maintained by terror. And it is, too, an all-comprehensive kingdom, the one kingdom of the one God.

The Kingdom of God—its detail wisely left undefined—remains to this day an integral part of the vision of Judaism as embodied in the synagogue tradition. Every synagogue service concludes with a prayer for its institution; and the prayer, which is taken from one of the oldest parts of the liturgy, looks to the time when 'the world shall be set under the kingdom of the Almighty, and all the children of flesh shall call upon thy name'.